

4	Gill vs. FCA US LLC 2025-01492739	Demurrer to Amended Complaint / Case Management Conference Continued to 8/17/26
5	Park vs. General Motors LLC 2023-01364797	Motion for Attorney Fees Plaintiffs Peter Park and Safety Zone Enterprises, LLC's ("Plaintiffs") Motion for Attorney's Fees, Costs, and Expenses is granted. Plaintiff is awarded \$22,261, in reasonable attorneys' fees, and \$1,117.43, in costs and expenses, against Defendant General Motors, LLC ("Defendant"). <u>Procedural Issues</u> Defendant contends this motion is untimely. (Opp'n at pp. 3-4, citing <i>Hatlevig v. General Motors LLC</i> (2026) 118 Cal.App.5th 644.) The Court finds <i>Hatlevig</i> is distinguishable in critical respect; and, that Plaintiffs' deadline to file the fee motion had not been triggered by the filing of notice of (conditional) settlement. <u>Merits</u> Civil Code section 1794(d) provides: "If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." Further, Plaintiff's right to seek an award of attorneys' fees is a term of the CCP section 998 offer, here. To determine reasonable attorney's fees, the court should consider the nature of the litigation, its difficulty, the amount involved, the skill required and employed in handling the matter, the attention given, the success of the attorney's efforts, the intricacies and importance of the litigation, the labor and necessity for skilled legal training and ability in trying the cause, and the time consumed. (<i>Church of Scientology v. Wollersheim</i> (1996) 42 Cal.App.4th 628, 659.) As to the reasonableness of the hours, "trial courts must carefully review attorney documentation of hours expended; 'padding' in the form of inefficient or duplicative efforts is not subject to compensation." (<i>Ketchum v. Moses, supra</i>, 24 Cal.4th at p. 1132.) "In determining a fee's reasonableness, the court may also consider whether the motion itself is reasonable, both in terms of (1) the amount of fees requested

		and (2) the credibility of the supporting evidence.” (<i>Guillory v. Hill</i> (2019) 36 Cal.App.5th 802, 811.) The court may make a downward adjustment if the billing entries are vague, “blockbilled,” or unnecessary. (<i>569 East County Boulevard LLC v. Backcountry Against the Dump, Inc.</i> (2016) 6 Cal.App.5th 426, 441.) It is within the court’s discretion to decide which of the hours expended by the attorneys were “reasonably spent” on the litigation. (<i>Meister v. Regents of Univ. of California</i> (1998) 67 Cal.App.4th 437, 449.) A trial court has broad discretion to determine the amount of reasonable attorney’s fees, as an experienced trial judge is in the best position to decide the value of professional services rendered in court. (<i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1095.) Based on the supporting papers submitted by Plaintiffs, the Court finds Plaintiffs reasonably incurred \$22,261 in attorneys’ fees. The Court finds the billable rates to be reasonable and within the prevailing rate in the community for similar work. (<i>PLCM Group, Inc. v. Drexler</i> (2000) 22 Cal.4th 1084, 1095.) However, Plaintiffs cannot recover for “noncompensable” tasks that involved purely clerical or secretarial tasks. (See <i>Collins v. City of Los Angeles</i> (2012) 205 Cal.App.4th 140, 159.) Accordingly, the Court reduced the fees requested by \$1,742. The Court declines to tax the costs. Defendant did not file a timely motion to strike or tax costs. (Cal. R. Ct. Rule 3.1700(b)(1).) Moreover, the cost items at issue (e.g., jury deposit, service of process and e-filing fees) are recoverable as reasonable costs and expenses. (See Code Civ. Proc., § 1033.5, subd. (a)(1), (a)(4), (a)(14).) Plaintiff shall give notice of the ruling.
6	Peralez vs. Skytower Aviation Services, Inc. 2024-01373030	Motion for Discovery / Motion to Compel Answers to Form Interrogatories / Motion to Compel Production /Motion to Deem Facts Admitted Defendant Bradley Young’s (“Defendant”) motions to compel Plaintiff Mayra Peralez’s (“Plaintiff”) responses to form interrogatories, set one, special interrogatories, set one, and requests for production of documents, set one, are granted. Defendant’s motion to deem requests for admission, admitted, shall be granted unless Plaintiff serves Code-compliant responses prior to the hearing.